

**Small Claim Form for Informal Adjudication
and Information Checklist
Federal Maritime Commission, Washington, DC.
Informal Docket No. 1995(I)**



Ian Mills

(Claimant)
vs.

Crowley Logistics, Inc.

(Respondent)

together the “Parties”

I. The Claimant is an individual that runs a small agribusiness based in Barbados.

II. The Respondent is a corporation in Florida (FEI Number 94-3300399) that provides logistics/shipping services. Its principal and mailing address is 9487 Regency Square Blvd., Jacksonville, FL 32225, with a warehouse located at 10205 NW 108TH Ave., Medley, FL 33178.

III. The matters that give rise to this claim are the following:

Overview

The Parties intended for the Respondent to transport a range of items from Miami to Barbados comprising (1) 40 ft container, (2) 98 dry goods, and (3) a clip on generator. As agreed between the Parties, the Claimant sent the 98 dry goods to the Respondent’s warehouse in Miami and the Parties agreed for the container and clip on generator to be collected by the Respondent from a supplier in Maimi. This was done (and there is signed proof by the Respondent’s truck driver when he collected both the container and clip on generator).

The Parties then entered into a Bill of Laden for the Respondent to transport all the items to the Claimant in Barbados, but accidentally omitted to include the clip on generator (stored in the Respondent’s warehouse). Accordingly, the Respondent shipped all items except the clip on generator to the Claimant in Barbados. Upon receipt, the Claimant realised that the clip on generator was not included (photos/video proof confirm this) and that the Bill of Laden had accidentally omitted it.

The Claimant asked the Respondent to transport the clip on generator to the Claimant in Barbados (by way of another Bill of Laden) but the Respondent told the Claimant that the Respondent didn’t know where the clip on generator was i.e. had lost it. As the clip on generator had not been included in the Bill of Lading, there is no contract or cap on insurance governing it. The clip on generator is the property of the Claimant who requested it be found and returned or refunded but the Respondent refused.

The Respondent is clearly violating Section 10(d)(1) of the Shipping Act of 1984 (both 46 U.S. Code § 41102 and § 41104) as they are not acting justly or reasonably with regard to receiving, handling, storing or delivering the Claimant’s property.

Although there is no Bill of Laden (i.e. contract) governing the clip on generator, it is the Claimant's property and under 46 U.S. Code § 41102 (General prohibitions (c) Practices in Handling Property) and Code § 41104 (Common carriers), the Respondent must act justly and reasonably regarding the handling, storing and delivering of the Claimant's property. The Respondent lost the Claimant's property and the Claimant is now making this claim under Section 11(a) of the Shipping Act of 1984 (46 U.S.C. 41301(a)) to recover costs.

Details

- A. The Claimant requested a quote from the Respondent to ship the Claimant's 40-foot Container and a range of items from Miami to Barbados.
- B. On September 17, 2021, a quote was provided to the Claimant by the Respondent, with quote number QUCR00018924-COLMIAUS (**Attachment 1**). The Parties agreed to proceed together. [The quote does not list the specific items to be transported with the Container, those would later be set out contractually in the Bill of Laden]
- C. On November 9, 2021, the Claimant sent the Respondent (communicating with their representative Elizabeth Guia) the details of the items that would be shipped with the Container, which comprised:
 - a. 98 packages of dry goods (by way of a google document list); and
 - b. A generator and transformer (by way of invoice setting out the details) (**Attachment 2**).
- D. The Parties agreed that:
 - a. the 98 packages of dry goods would be sent by the Claimant to the Respondent's warehouse located at 10205 NW 108TH Ave., Medley, FL 33178— this was done; and
 - b. The Respondent would collect the Container and clip on generator from 13850 NW 105 Ave., Hialeah, FL 33018 (from a company called MyShippingContainers.com/Gold Coast Repairs Inc).
- E. On November 19, 2021, the Container, clip on generator and transformer were collected by the Respondent's truck driver from MyShippingContainers.com/ Gold Coast Repairs Inc. The Respondent's truck driver signed for them (**Attachment 3**). This is the signed interchange form which specifically shows:
 - a. Separate unit numbers for the Container (802643-3) and for the generator (TAXG-594760) and
 - b. At the bottom is signed by the Respondent's truck driver with ID number (10148).In addition, the President of the supplier (MyshippingContainers.com) also verbally confirmed to the Claimant that the generator was collected by the Respondent's truck driver that day.
- F. On November 24, 2021, the parties agreed the Bill of Lading (**Attachment 4**). However, this only included the Container and 98 packages (the clip on

generator (TAXG-594760) was accidentally omitted). The items were shipped to Barbados.

- G. On December 8, 2021, when the Container arrived at its destination in Barbados, there is video and photo evidence of the Container arriving without the clip on generator (**Attachment 5**). The Claimant contacted both the local agents in Barbados, for the Claimant and for the Respondent, and neither had any evidence of the generator having been shipped to Barbados.
- H. On December 14, 2021, within 2 business days of receiving the delivery of the Container, the Claimant notified the Respondent that the generator had not been delivered and asked the Respondent about its whereabouts. The Respondent contacted their warehouse team but provided no explanation for where the generator was. The Claimant requested the Respondent contact their truck driver, who had signed for the generator, but the Respondent frequently did not respond to the Claimant (correspondence **Attachment 6**).

Violation of Shipping Act

- I. Under Section 10(d)(1), 46 U.S. Code § 41102 (General prohibitions (c) Practices in Handling Property), the Respondent must not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property; and under 46 U.S. Code § 41104 the Respondent must not engage in any unfair or unjustly discriminatory practice in the matter of loading and landing freight.
- J. For the reasons set out above, the Respondent has violated the above provisions of the Shipping Act of 1984. The generator is the property of the Claimant and although the parties had originally intended for the generator to be shipped to Barbados – no contract/Bill of Laden was put in place for it and it was not shipped to the Claimant and the Respondent is violating its obligation to handle, store and deliver the generator back to the Claimant.
- K. Over a course of many months, the Claimant made many phone calls, sent many emails and used the Respondent's internal procedures to seek information from the Respondent on where the generator is and requesting that it be returned or refunded. The Respondent has been extremely unresponsive and not provided any substantive information and has been unwilling to return or refund the generator.

Damages

- L. Although the parties had originally intended for the generator to be shipped to Barbados – no contract/Bill of Laden was put in place for it. The Parties did not agree contractual terms for it. Accordingly, the specific terms of the Bill of Lading only apply to items listed within the Bill of Laden and do not apply to the generator which is not included (i.e. the \$500 insurance cap on items within the Bill of Lading does not apply to the generator).

- M. The Claimant is entitled to damages to fully replace the Claimant's property which the Respondent lost and costs directly incurred as a result. The Claimant runs a small agribusiness and there were losses from frozen foods suffering from power cuts for many months while the Claimant was without a back-up generator as a result of the Respondent not returning/refunding it.

Summary

The Parties intended for the Respondent to ship items to the Claimant in Barbados (**Attachments 1 & 2**). There is clear evidence, in the form of a countersigned interchange sheet (Attachment 3) and verbal confirmation by the President of the supplier (MyshippingContainers.com) that the Respondent's truck driver collected the clip on generator. However, the clip on generator was not included in the Bill of Lading (**Attachment 4**) and there is clear evidence that the clip on generator was not shipped to the Claimant (**Attachment 5**) with photos/video evidence also supported by local agents (including for the Respondent) in Barbados that have no record of it and Crowley has provided no evidence of the clip on generator having been transported either. Contractually, there is no contract governing the generator as it is not part of the Bill of Lading and there is no cap on insurance. The Claimant is entitled to his property and, as it has been lost by the Respondent prior to any contract being put in place, the Claimant is entitled to damages to replace the cost of it and costs directly incurred as a result. The Claimant repeatedly requested the Respondent to either return the generator or refund the cost of it (**Attachment 6**) but the Respondent has not done so nor acted in good faith over a protracted period of time.

IV. The Claimant makes this claim in accordance with Section 11(a) of the Shipping Act of 1984 (46 U.S.C. 41301(a)) which permits any person to file a complaint with the Commission claiming a violation occurring in connection with the foreign commerce of the United States and to seek reparation for any injury caused by that violation.

- A. Under 46 U.S. Code § 41102 (General prohibitions (c) Practices in Handling Property) a common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.
- B. Under 46 U.S. Code § 41104 (Common carriers) a common carrier must not engage in any unfair or unjustly discriminatory practice in the matter of loading and landing freight.

As set out on the proceeding pages, the Respondent has failed to establish, observe and enforce just and reasonable regulations and practices relating to or connected with receiving, handling and storing property i.e. the Respondent collected, signed for and did not ship nor is willing to return, the Claimant's property. The Respondent has engaged in a practice that is unjust or unreasonable; and has done so in a normal, customary and continuous basis. The Respondent has engaged in an unfair or unjustly discriminatory practice in the matter of loading and landing the Claimant's property. Accordingly, the Respondent is in breach of the Shipping Act of 1984.

V. The Claimant has been injured by the Respondent not returning nor refunding the Claimant's property. As explained above, there is no cap on insurance and the amount of damages are as follows:

- A. \$8,500, reimbursing the cost the Claimant paid for the generator
 - B. \$800, transport cost for a replacement generator
 - C. \$750, Claimant compensation for spoiled foods due to being without a generator for many months without the Respondent returning/refunding the generator (frozen foods are critical to the Claimant's agribusiness and suffered at the hands of power cuts)
 - D. \$500, cost in terms of time incurred in trying to resolve the dispute in absence of good faith by the Respondent
 - E. \$112, reimbursement of filing fee for having to make this complaint
- Total: \$10,662

VI. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

Attached are six (6) documents in support of this claim.

(Date) May 31, 2023
(Claimant's signature) _____
(Claimant's address) 47B Millennium Heights, Welches, Barbados
(Agent or attorney) N/A

VERIFICATION

I verify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Ian W. Mills
Ian Mills

May 31, 2023